

A

MEASURE

PASSED BY

The National Assembly of the Church of England

To establish Diocesan Boards of Patronage.

[16th June 1932.]

1.—(1) There shall be established in every diocese a Diocesan Board of Patronage consisting of—

Diocesan
Boards of
Patronage.

- (i) the bishop of the diocese, who shall be chairman of the Board;
- (ii) three clerks in Holy Orders holding benefices in the diocese or the bishop's licence under seal elected by the Chamber of Clergy of the Diocesan Conference, provided that an archdeacon shall not be qualified to be an elected member of the Board;
- (iii) five laymen elected by the Chamber of Laity of the Diocesan Conference; and
- (iv) for the purpose of transacting any business relating to a particular benefice, the archdeacon and rural dean in whose archdeaconry and rural deanery respectively such benefice is situate.

(2) The election of the elected members of a Diocesan Board of Patronage shall be conducted upon the principle of proportional representation by the method of the single transferable vote under rules to be made from time to time by the Archbishop of the Province.

(3) The bishop may nominate any suffragan or assistant bishop of the diocese to act in his place on such occasions as he may determine as a member and as chairman of the Board.

(4) A Diocesan Board of Patronage shall be a body corporate by the name of the diocese in which it is established followed by the words "Diocesan Board of Patronage," and shall have perpetual succession and a common seal.

Powers of
Diocesan
Boards of
Patronage.

2. A Diocesan Board of Patronage shall have power, without any licence in mortmain being required, to acquire, hold and transfer any right of patronage and to exercise any right of presentation or other right of a patron incident to a right of patronage held by the Board or conferred on the Board by any Measure or statute or otherwise :

Provided always that—

- (a) no right of patronage shall be transferred by the Board of a diocese without the consent of the Parochial Church Council of the parish concerned, except in the event of such parish becoming part of another diocese, when the right of patronage may be transferred to the Diocesan Board of Patronage of such other diocese ; and
- (b) any affected transfer of a right of patronage not complying with the foregoing provisions shall be void.

Term of
office,
quorum,
&c.

3.—(1) The elected members of a Diocesan Board of Patronage shall be elected in the first instance for such period not exceeding a period which expires four years after the passing of this Measure as the bishop of the diocese shall by writing under his hand determine, and thereafter in every third calendar year, retiring members being eligible for re-election. Unless previously resigning, or in the case of clerks in Holy Orders ceasing to be qualified in manner laid down by subsection (1) of section one of this Measure, elected members shall hold office until their successors are elected.

(2) Six members of the Board shall constitute a quorum unless the Diocesan Conference shall determine that some other number of members shall constitute a quorum.

(3) Subject to the provisions of this section, the powers of the Board may be exercised notwithstanding any vacancy in its membership.

(4) Every body having power to elect members of the Board shall have power to determine how casual vacancies occurring in the number of members elected by that body during their period of service may be filled.

(5) Every member of the Board elected to fill a casual vacancy shall serve for the unexpired period for which the member replaced would have served.

(6) Every determination of the Board upon the qualification for membership of any person claiming to be a member thereof shall be final and conclusive.

(7) The Board may make standing orders for the purpose of regulating the conduct of its business.

(8) The Board may appoint such officers as may be required and may determine their duties.

(9) A clerical member of the Board shall not take any part in any proceedings of the Board connected with the exercise of a right of presentation in favour of himself.

4. This Measure may be cited as the *Benefices Short title.*
(Diocesan Boards of Patronage) Measure, 1932.

5. This Measure shall apply to the whole of the *Extent.*
Provinces of Canterbury and York except the Channel
Islands and the Isle of Man.

Printed by PERCY LUND, HUMPHRIES & CO. LTD.

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